

SECOND SESSION – TENTH PARLIAMENT

REPORT

OF THE DELEGATION

TO

THE SIXTEENTH CONFERENCE OF PARTIES TO THE UNITED NATIONS CONVENTION ON BIOLOGICAL DIVERSITY (COP16)

21ST OCTOBER -1ST NOVEMBER, 2024

CALI, COLOMBIA

1.0 INTRODUCTION

1.1 The Chairperson of the Portfolio Committee on Environment, Climate and Wildlife, Hon. S. Matema, led a delegation that travelled to Cali, Columbia, to attend Sixteenth Meeting of the Conference of the Parties to the Convention on Biological Diversity (COP 16), Eleventh meeting of the Conference of the Parties serving as the meeting of the Parties to the Cartagena Protocol on Biosafety (CP-MOP 11), and Fifth meeting of the Conference of the Parties serving as the meeting of the Parties to the Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization (NP-MOP 5 that was held from 21 October to 01 November, 2024. The other Members of the delegation were:

1. Hon. C. Kambuzuma; Member of Parliament;
2. Hon. B. Nyandoro, Member of Parliament; and
3. Mr. J. Mazani, Principal Committee Clerk

2.0 OBJECTIVES

a) To understand the key negotiation issues on biodiversity conservation and sustainable use.
b) To appreciate diverging views from the negotiations on biodiversity conservation and sustainable use;
c) To identify the key outcomes of the Biodiversity COP 16 negotiations; and
d) To make policy and legislative recommendations on Biodiversity conservation.

3.0 KEY NEGOTIATION ISSUES

3.1 At COP 15 in 2022, Parties agreed on a new global plan to protect nature called the Kunming-Montreal Global Biodiversity Framework. Each country was expected to update its own national plan for biodiversity conservation to align with this global framework. At COP 16, the Subsidiary Body on Implementation (SBI), reviewed the progress made by countries in updating their national plans.

3.2 The negotiations at COP 16 were also cantered on the sharing of benefits from the use of digital genetic information. Digital Genetic Information refers to digital data about the genetic makeup of organisms. Parties agreed that when someone uses digital information about the genes of plants or animals, they should share the benefits with the countries where those organisms come from. A new system is being set up to ensure fair sharing of benefits. This system will include a global fund to support countries, especially developing countries. A group of experts has been working to develop the details of this new system.

3.3 Negotiations at COP 16 also involved the setting up of a system to track progress on the new global plan for protecting nature (Kunming-Montreal Global Biodiversity Framework). In order to monitor progress, scientists have been working on creating indicators to track how well countries are doing in achieving the goals of the plan for protection of nature. To ensure enhanced reporting on the global plan, a system for regularly checking how well all parties are doing together will be established. This system is a voluntary country review where each country would have the option to share its own progress reports and get feedback from others. Non-State actors can also report on their contributions to protecting nature. Countries will use a standardized format to report on their progress every few years.

3.4 In terms of the financial aspects of the Kunming-Montreal Global Biodiversity Framework, two aspects were negotiated on namely resource mobilization and financial mechanism. Under resource mobilisation, a funding strategy has been developed to raise money to implement and support the Global Biodiversity Framework Fund. An advisory committee, is advising the COP on how to raise money and manage the funds. In addition, the funding deeds for implementing the plan are being assessed. On financial mechanism, the Global Environment Facility (GEF) is a key financial mechanism for biodiversity conservation. The performance of GEF in supporting the biodiversity plan is being reviewed. The goal is to ensure there is enough money to implement the plan effectively.

3.5 Regarding capacity building and technical cooperation, negotiations delved into ways to improve the skills and knowledge of people working on biodiversity conservation. The intention is to improve the way countries and organizations share information and build expertise to protect nature. There are intentions to establish a central hub that will coordinate efforts and share information. Furthermore, regional centres will be set up to provide specific support to different regions. The Parties also negotiated on setting up a clearing-house mechanism, a platform for sharing information and data on biodiversity that is user friendly and accessible. In addition, a knowledge management strategy is being developed to effectively manage and use knowledge related to biodiversity conservation.

3.6 To achieve better results, Parties intent to work together with other international organizations and conventions to share information and coordinate efforts including joint actions to achieve common goals to protect biodiversity.

3.7 Another topical negotiation aspect at COP 16 was the rights of Indigenous Peoples and Local Communities (IPLCs) and how to better protect their traditional knowledge and practices related to biodiversity. Parties had a deeper discussion about the role of languages in passing down traditional knowledge between generations. Parties negotiated on the creation of a new plan to better protect the rights and knowledge of IPLCs. This was meant to ensure that IPLCs were fully involved in developing and implementing this plan. Thus, discussions centred on deciding the best way to organise and manage this work in the future. The Permanent Forum on Indigenous Issues, a UN body that focuses on Indigenous Peoples' rights, submitted its recommendations for consideration by the COP.

3.8 The Conference of the Parties to the Convention on Biological Diversity (CBD) was working on improving how it communicates about biodiversity issues to the public. It has adopted a new communication strategy to support the global biodiversity plan. The CBD is also updating its plan for educating people about biodiversity and raising public awareness. This includes creating guidelines for countries to use in their own communication and education efforts. The Subsidiary Body on Implementation (SBI) has reviewed these plans and made recommendations, which were considered by the COP.

3.9 The CBD is working to identify the scientific and technical needs to implement the Kunming-Montreal Global Biodiversity Framework. The goal is to make sure that it has the right information and tools to effectively implement the global biodiversity plan. It does this by reviewing existing tools and guidance as well as identifying gaps and redundancies to see if they are sufficient to implement the Framework. The CBD is identifying new scientific information that is needed to support the implementation of the Framework. It is working with the Intergovernmental Science-Policy Platform on Biodiversity and Ecosystem Services (IPBES) to ensure that the Platform's work aligns with the needs of the Framework.

3.10 In addition, the CBD is working to develop a long-term strategy to mainstream biodiversity considerations into various sectors of society, such as agriculture, forestry and urban planning. As a result, it is seeking input from governments, organizations and stakeholders on how to effectively mainstream biodiversity. This ensures that biodiversity is considered in all decision-making processes, leading to more sustainable and environmentally friendly practices.

3.11 The CBD is recognizing the diverse values of biodiversity, beyond just its ecological importance. This includes cultural, social and economic values. It is doing this through reviewing a report from the Inter-governmental Science-Policy Platform on Biodiversity and Ecosystem Services (IPBES) that delves into these diverse values. This information will be used to inform the implementation of the Kunming-Montreal Global Biodiversity Framework.

3.12 The delegation learnt that the Conference of the Parties to the Convention on Biological Diversity was working to improve the management of wildlife populations. It is reviewing the current state of wildlife management and identifying areas where additional guidance or support may be needed. The CBD is collaborating with the Collaborative Partnership on Sustainable Wildlife Management to develop a comprehensive analysis of existing tools and guidance for sustainable wildlife management. This analysis will help identify gaps and opportunities for improvement. The goal is to promote sustainable wildlife management practices that balance the needs of people and nature, ensuring the long-term conservation of wildlife populations.

3.13 The delegation also noted that the Conference of the Parties to the Convention on Biological Diversity (CBD) was addressing the issue of invasive alien species, which are species that have been introduced to new environments and cause harm to native ecosystems. It was doing that by reviewing existing measures to control invasive alien species and identifying emerging threats from invasive alien species, such as those caused by pathogens and parasites. To address the issue of invasive alien species, it collaborates with other organizations to protect biodiversity and prevent the ecological and economic damage caused by these species.

3.14 The delegation learnt that CBD recognises the strong link between biodiversity and human health. It was working to promote the health of both people and the planet. To that effect, a Global Action Plan on Biodiversity and Health was developed to address the link between biodiversity loss and human health. Work is underway to integrate biodiversity considerations into health policies and practices.

3.15 The delegation also noted that the CBD is working to protect plant diversity. They are collaborating with the Global Partnership for Plant Conservation to develop a set of actions to support the implementation of the Kunming-Montreal Global Biodiversity Framework. The

goal is to conserve plant species and their habitats, recognizing the critical role that plants play in ecosystems and human well-being.

3.16 Another interesting negotiation aspect at COP16 observed by the delegation was that the Conference of the Parties to the Convention on Biological Diversity is monitoring the development of synthetic biology, a technology that involves modifying the genetic material of organisms. The CBD is concerned about the potential impacts of synthetic biology on biodiversity and ecosystems. It is working to assess the risks and benefits of this technology and to develop appropriate guidelines and regulations.

3.17 The delegation noted that CBD recognizes the strong link between biodiversity and climate change. It is working to address the impacts of climate change on biodiversity and to promote nature-based solutions to climate change. In fact, the CBD is reviewing the relationship between biodiversity and climate change and exploring ways to integrate climate change considerations into biodiversity conservation efforts.

3.18 Finally, the delegation observed that the Conference of the Parties to the Convention on Biological Diversity is reviewing the implementation of Article 14, paragraph 2, of the Convention, which deals with liability and redress for damage to biological diversity. It is collecting information from Parties and other Governments on their experiences with implementing the relevant decisions and any recent developments in this area. This information will be used to assess the effectiveness of the current mechanisms and to identify any potential improvements.

4.0 DIVERGING VIEWS FROM THE NEGOTIATING PARTIES

Negotiations highlighted the complexities of international environmental governance, with diverse interests and perspectives among different countries and regions. The discussions reflected ongoing debates on balancing economic development, environmental conservation and social equity.

4.1 Financial Mechanism and resource mobilisation

The primary departure points between developing and developed countries in the negotiations on the CBD Financial Mechanism lies in their differing perspectives on the adequacy and effectiveness of the current financial system, particularly the Global Environment Facility (GEF) and the Global Biodiversity Framework (GBF) Fund.

4.1.1 Developing countries argue that the current financial system, including the Global Environment Facility (GEF) and the Global Biodiversity Framework (GBF) Fund, is not providing enough money to address their biodiversity needs. They believe that these mechanisms are not adequately addressing the specific challenges faced by developing countries, such as poverty, inequality and climate change. They are calling for increased financial support, including new and additional funding, to implement the Global Biodiversity Framework. Developing countries are pushing for a new, dedicated global instrument for biodiversity finance. Developing and developed countries have different views on how much money is needed to protect biodiversity and how existing financial mechanisms are working.

4.1.2 On the other hand, developed countries often argue that the current financial system is sufficient and that the focus should be on improving the effectiveness of existing mechanisms. They believe that the GEF and the GBF Fund are important tools for financing biodiversity conservation and that they should be strengthened and better utilized. They also argue that developing countries need to improve their own financial management and governance practices to better utilize existing resources. Thus, developed countries are more hesitant to create a new mechanism and prefer to strengthen existing ones.

4.2 National Biodiversity Targets

4.2.1 Zimbabwe was, amongst the 41 African countries, that submitted their national targets aligned with the Kunming-Montreal Global Biodiversity Framework. This is significant for several reasons. Firstly, submitting national targets shows Zimbabwe's commitment to the global goals of biodiversity conservation and sustainable development. Secondly, the process of developing and submitting national targets helps Zimbabwe prioritise biodiversity conservation and sustainable use within its national development plans. Thirdly, national targets provide a framework for monitoring progress towards biodiversity goals and identifying areas where additional efforts are needed. Lastly, it helps identify global gaps in biodiversity conservation and sustainable use, informing international policy and decision-making. The next step is to revise and update its National Biodiversity Strategies and Action Plan (NBSAP) that outline the nation’s overall strategy for biodiversity conservation. It provides a framework for achieving national targets and includes a wider range of actions, such as policy framework, actions and implementation, capacity building and public awareness campaigns.

4.3 CBD Cooperation

4.3.1 The main point of contention in these negotiations revolves around the extent and nature of cooperation among various multilateral environmental agreements (MEAs) and other relevant stakeholders, especially regarding the implementation of the Global Biodiversity Framework (GBF). While there was consensus on the importance of cooperation, viewpoints differ on how to best achieve it. Some Parties champion broad cooperation encompassing biodiversity, food, nutrition, climate change and ocean conservation. Others stress the importance of respecting individual MEA mandates to prevent overlapping efforts. Developing countries prioritize strengthening cooperation and coordination among the Rio Conventions, particularly in resource mobilization and capacity building, emphasizing the need to address their specific needs in collaborative efforts. In contrast, Developed countries focus on specific cooperation areas like data sharing and technical assistance, prioritizing streamlining processes and avoiding duplication.

4.3.2 There are differing views on the role of Indigenous Peoples and Local Communities (IPLCs) in decision-making and resource access. Many developing countries, particularly those with significant Indigenous populations, strongly advocate for greater IPLC involvement and the establishment of a subsidiary body under Article 8(j) to provide a dedicated platform for their rights and participation. They emphasize the importance of recognizing IPLCs' rights and contributions to biodiversity conservation and sustainable use, and call for their inclusion in the work program and decisions.

4.3.3 Some developed countries have concerns about the potential costs and administrative burden associated with a new subsidiary body, arguing that existing mechanisms can adequately address IPLC needs. They also express concerns about potential overlapping mandates and the need to balance IPLC rights with other considerations like environmental protection and sustainable development.

Additionally, many developing countries, particularly those with significant African diaspora populations, advocate for recognizing the contributions of people of African descent to biodiversity conservation to ensure their equitable participation and benefit-sharing. While acknowledging the importance of recognizing the contributions of all groups, some developed countries express concerns about potential unintended consequences and the need to avoid creating new categories of rights holders.

4.3.4 The primary points of departure between developed and developing countries during the Working Group II negotiations centred on several key issues. Developing countries strongly advocated for increased capacity-building and financial support to implement the CBD and its Protocols, particularly the NP and CP. They emphasised the need to address capacity gaps, particularly in developing countries. Developed countries had differing views on the specific mechanisms and levels of support.

4.3.5 Many developing countries faced challenges in implementing the NP, particularly in terms of access and benefit-sharing. They sought support for capacity-building, technology transfer and financial resources to effectively implement the Protocol. Developed countries emphasised the need for compliance with the NP and may advocate for a balanced approach that ensures both access to genetic resources and fair and equitable benefit-sharing.

4.3.6 There was significant debate on the terms of technology transfer to developing countries. While some parties advocated for mutually agreed terms, others argued that this would hinder the transfer of technology. Disagreements emerged over the definition and role of bioeconomy approaches in the development of commercial products from genetic resources. The disagreement highlighted the tension between economic development and environmental protection. Some parties emphasised sustainable approaches, while others preferred a broader bioeconomy framework. Sustainable bioeconomy approach focuses on using biological resources in a way that minimises harm to the environment and ensures long-term sustainability. It prioritises practices like sustainable agriculture, renewable energy and conservation of biodiversity. A broader bioeconomy framework is more open to various commercial applications of genetic resources, potentially including those with higher environmental impact. It may prioritise economic growth and innovation, even if it means sacrificing some environmental considerations.

4.3.7 Developing countries highlighted the importance of considering socio-economic factors in biosafety assessments. They emphasize the need for capacity-building and awareness-raising to promote the use of voluntary guidance on socio-economic considerations. Developed countries had different perspectives on the specific criteria and methodologies for assessing socio-economic impacts. They prioritised scientific and technical considerations, while also recognising the importance of socio-economic factors. Developed countries have more advanced biosafety regulatory frameworks and research capacities. They prioritize risk assessment, risk management and international cooperation. Developing countries require

more support in developing their biosafety capacities. They emphasized the importance of technology transfer and capacity building. Developing countries placed significant importance on fair and equitable sharing of benefits arising from the utilization of genetic resources. They advocated for stronger implementation of the Nagoya Protocol and support mechanisms for capacity building and technology transfer. Developed Countries prioritized access to genetic resources for research and development. They emphasized the importance of intellectual property rights and the need for clear and predictable regulatory frameworks.

4.3.8 Developing countries were more supportive of reviewing liability and redress mechanisms to address potential harm caused by biodiversity loss and climate change. They advocated for strong liability and redress mechanisms to ensure that victims of environmental damage receive adequate compensation and called for financial security mechanisms to cover potential liabilities. Developed countries, on the other hand, were more hesitant to revisit the issue, concerned about potential liabilities and legal implications. They prioritized a balanced approach that avoids excessive burdens on industry and promotes sustainable development.

4.3.9 Countries argued about the need for global rules on sustainable wildlife management and the role of regional organizations in creating these guidelines. There was disagreement about what exactly is causing unsustainable use of wildlife, especially the impact of new technologies. Countries discussed the extent of unsustainable harvesting and use practices and the importance of promoting legal and sustainable trade. Everyone agreed on the need for incentives, but there were differences on how to achieve this, such as using biodiversity credit schemes and involving local governments.

4.3.10 Developed countries want to strengthen international cooperation, scientific research, and policies to address invasive alien species. They prioritize early detection, quick response, and prevention. Developing countries, on the other hand, face more challenges due to limited resources and capacity. They need financial and technical support from developed countries to effectively manage invasive alien species.

4.4 Biodiversity and Health Co-benefits

4.4.1 Developing country parties advocated for the inclusion of derivatives of genetic resources in benefit-sharing mechanisms, arguing that they are crucial for developing new medicines and treatments. Developed country parties expressed concerns about the potential implications of including derivatives, arguing that it could complicate existing intellectual property rights regimes and hinder innovation.

4.4.2 Derivatives of genetic resources are substances or products that are derived from genetic material. These include biochemical compounds produced by organisms, such as proteins, enzymes and lipids. For instance, a pharmaceutical drug can be derived from a plant's natural compounds. Genetic derivatives also consider traditional practices, innovations and knowledge associated with genetic resources. By advocating for the inclusion of derivatives of genetic resources in benefit-sharing mechanisms, developing countries aim to ensure that they receive a fair share of the benefits arising from the commercialization of products derived from their genetic resources.

4.4.3 Traditional knowledge plays a crucial role in identifying, understanding and utilizing genetic resources. Indigenous and local communities have centuries of knowledge about the properties and uses of plants, animals, and other organisms. This knowledge often forms the basis for scientific research and the development of new products. Without acknowledging and respecting the traditional knowledge associated with that plant, the communities that have preserved and passed down this knowledge may not only receive compensation for their contributions to scientific research and product development but fair benefits from the commercialization of products derived from their genetic resources.

5.0 KEY OUTCOMES OF COP 16

The 16th Conference of the Parties to the Convention on Biological Diversity (COP 16) concluded with several significant outcomes aimed at safeguarding biodiversity and addressing pressing environmental challenges.

5.1 Sharing Benefits from Digital Genetic Information

A ground-breaking agreement was reached on the operationalisation of a new global mechanism, the "Cali Fund," to share the benefits from the use of digital sequence information on genetic resources (DSI) more equitably. This mechanism will ensure that developing countries and Indigenous Peoples and Local Communities receive a fair share of the profits generated from the commercial use of genetic information.

5.2 Strengthening the Role of Indigenous Peoples and Local Communities

COP 16 recognized the vital role of Indigenous Peoples and Local Communities in biodiversity conservation. A new Programme of Work was adopted to ensure their meaningful contribution to the Convention's objectives and the implementation of the Kunming-Montreal Global

Biodiversity Framework (KMGBF). Additionally, a new subsidiary body was established to elevate their voices and participation in decision-making processes.

5.3 Funding Biodiversity

Parties agreed on a strategy for resource mobilization to secure $200 billion annually by 2030 to support biodiversity initiatives. This funding will be crucial for implementing the KMGBF and addressing the biodiversity crisis.

5.4 Implementing the KMGBF

The COP took stock of progress in implementing the KMGBF and encouraged countries to accelerate their efforts. A significant number of countries have already submitted national biodiversity targets and National Biodiversity Strategy and Action Plans.

5.5 Synthetic Biology

The COP recognized the potential benefits and risks of synthetic biology. A new thematic action plan was adopted to address capacity-building, technology transfer and knowledge-sharing needs in developing countries.

5.6 Invasive Alien Species

To combat the threat of invasive alien species, the COP agreed on guidelines for managing these species, including measures to address e-commerce and cross-border trade.

5.7 Sustainable Wildlife Management and Plant Conservation

The COP emphasised the importance of sustainable wildlife management and plant conservation. A decision was adopted to strengthen monitoring, capacity-building and the involvement of Indigenous Peoples and Local Communities in wildlife management.

5.8 Biodiversity and Health

A Global Action Plan on Biodiversity and Health was approved to address the interconnections between human health and ecosystem health. This plan aims to prevent the emergence of zoonotic diseases and promote sustainable ecosystems.

5.9 Risk Assessment

New guidance was adopted to assess the risks posed by living modified organisms (LMO) containing engineered gene drives, ensuring a rigorous and transparent approach to risk assessment.

6.0 Delegation Observations

6.1 Zimbabwe, rich in biodiversity and cultural heritage, has long been concerned with protecting indigenous knowledge and genetic resources. The country has taken steps to safeguard these assets, including the development of Statutory Instrument 61 of 2009 and the ratification of the Nagoya Protocol. However, challenges in implementation, such as capacity building and awareness, have hindered progress. With the adoption of the Kunming-Montreal Global Biodiversity Framework, Zimbabwe now faces the need to update its legal framework to align with international obligations and ensure fair and equitable benefit-sharing for its communities.

6.2 The key provisions of this Bill would focus on establishing a comprehensive framework for access to genetic resources, prior informed consent, mutually agreed terms and benefit-sharing. It should also allocate resources for training and capacity building of relevant stakeholders, including government officials, researchers and local communities. In addition, the Bill should develop transparent and equitable mechanisms for sharing benefits derived from the utilisation of genetic resources, including financial benefits and technology transfer arrangements. It would be essential that the Bill establishes a robust system for monitoring compliance and enforcing its provisions.

6.3 The main purpose of the Authority would be to streamline the implementation of biodiversity policies and regulations. Its critical functions would be the development and implementation of national biodiversity policies and strategies, issuing permits for access to genetic resources facilitating benefit-sharing agreements and ensure that benefits are shared equitably with local communities and collaborate with international organisations and other countries on biodiversity issues.

7.O RECOMMENDATIONS FROM KEY OUTCOMES OF THE NEGOTIATIONS

Thus, the delegation recommends the following;

7.1 The Ministry of Environment, Climate and Wildlife should craft a comprehensive Biodiversity Bill that consolidates and strengthens existing biodiversity legislation, including the Nagoya Protocol.

7.2 The Ministry of Environment, Climate and Wildlife should establish a National Biodiversity Authority.

7.3 The Ministry of Environment, Climate and Wildlife should ensure that relevant provisions of the Parks and Wildlife Amendment Bill (HB.1.2024) which is under consideration by Parliament, extensively provides for the sustainable use and benefit sharing from the wildlife proceeds.

8.0 Conclusion

8.1 The COP 16 negotiations highlighted the critical role of international cooperation in addressing biodiversity loss and climate change. Key outcomes included agreements on sharing benefits from digital genetic information, strengthening the rights of Indigenous Peoples and Local Communities, and securing funding for biodiversity conservation. Zimbabwe's participation in the COP 16 underscores the country's commitment to global biodiversity goals. To effectively implement the Kunming-Montreal Global Biodiversity Framework, Zimbabwe should prioritize updating its national biodiversity strategy, strengthening its legal framework and building capacity to ensure fair and equitable benefit-sharing from genetic resources.